

From: Enquiries enquiries@oaic.gov.au
Subject: RE: EN21/12782 EN21/11876 [SEC=OFFICIAL]
Date: 1 November 2021 at 4:19 pm
To: Rich McLean richarddrawsstuff@gmail.com

Our reference: EN21/12782

Dear Rich

Thank you for your enquiry.

The [Office of the Australian Information Commissioner](#) (the OAIC) receives a large quantity of written enquiries each day. An Enquiries Officer will be assigned to your enquiry and will be in contact soon.

We generally aim to respond to all written enquiries within ten working days. However, we currently have a delay in allocating new enquiries to an officer within that timeframe. At this time it may be up to 4 weeks before an officer is able to respond to your written enquiry. We will contact you earlier if we are able to do so.

If your enquiry is urgent and requires an immediate response, please telephone us on 1300 363 992 and quote your reference number. More complex phone enquiries may require a written response and may still take some time.

To keep in touch with the OAIC, you can go to the [sign-up page](#) on our website and sign up to receive our newsletter. You can also find additional information on our website www.oaic.gov.au.

Yours sincerely

Enquiries Team
Office of the Australian Information Commissioner

From: Rich McLean <richarddrawsstuff@gmail.com>
Sent: Saturday, 23 October 2021 3:27 PM
To: Enquiries <enquiries@oaic.gov.au>
Subject: EN21/12782 Re: EN21/11876 [SEC=OFFICIAL]

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Hi

Thanks for your response

Bluntly, I'd like all the collective information that institutions know or think they know about me

That's because

I've suffered a fatal injury in a hospital

I can't report rape or murder to police

I'm banned from the MHCC HCC the MHLC don't help

I'm banned from AFCA rejected from Centrelink human services rejected me

So did HCF I'm banned

I was rejected workers compensation by Comcare

The AG's office won't speak to me

The police hassle me

The local mental health service kicked me out

I don't have a psychiatrist or psychologist

I barely even have a Gp

I've been blacklisted from AHpRA and NHOPC

Also rejected from small business and family ombudsman

I've been rejected from telecommunications ombudsman

The commonwealth ombudsman refuse to help me and the state ombudsman rejected what was I say a murder at Weribee mercy who have banned me

The local legal help centre won't connect

Justice connect refuse me

I'm blocked from the iSp of federal police and family law and rejected from VCAT and the banks have ripped me off

In all the collective information there lies the evidence why I am being set up

And why I have overdosed under care and suffered a fatal injury in a hospital from systemic abuse

There is no way this can randomly happen

I would like you to release or act as a co dusts fir every agency possible

Do that I may defend myself

Do it quickly please

I'm at risk of death and starvation

Once they turn every person against me like they have

It's called a conspiracy to pervert the course of justice

Your ambiguous message is just as I expected

But I'm imploring you to release the information I need in order to a) survive b) move on

Dr Rich McLean

Artist / Whistleblower / Academic / Writer

www.richmclean.com.au

+61 400639248

rich@richmclean.com.au

"The bad news is that nothing is permanent, but the good news is that nothing is permanent." - Buddhist adage

I acknowledge the Indigenous people as the traditional custodians of the land where we live, learn & work.

I'm out and about! This email is sent from my phone

On 22 Oct 2021, at 2:28 pm, Enquiries <enquiries@oaic.gov.au> wrote:

Dear Mr Mclean,

Thank you for your enquiry. However, it is unclear from your correspondence how you would like us to assist you in this instance.

The [Office of the Australian Information Commissioner](#) (the OAIC) regulates the [Privacy Act 1988 \(Cth\)](#) (the Privacy Act) and the [Freedom of Information Act 1982 \(Cth\)](#) (the FOI Act). The office has the power to investigate complaints about the alleged mishandling of personal information by Australian government agencies and many private sector organisations, as well as the power to review FOI decisions of Australian government agencies. We are also responsible for handling privacy complaints about ACT public sector agencies.

There are several actions the OAIC can take regarding a privacy or FOI issue. These actions are outlined below.

Privacy Complaints

The OAIC can take complaints from individuals who feel their personal information has been mishandled by a specific organisation or Australian Government agency. This may include the unauthorised disclosure of your information, retaining inaccurate information or lack of security measures protecting your information.

If you consider that an entity has not fulfilled its obligations under the Privacy Act, you may wish to lodge a complaint with the OAIC by following the below process.

- you need to complain to the organisation in the first instance, if you have not already done so, outlining your privacy concerns, and allow it 30 days to respond
- if you do not receive a response after 30 days, or you are dissatisfied with the response, you can make a written complaint to this office
- you can submit a complaint to the OAIC by using our online [complaint form](#)

The Privacy Act requires complaints to be made by the individual to whom the information relates. If you were to lodge a complaint on another person's behalf, then you would need to provide us with written authority in which they have consented to you acting on their behalf in that matter.

The OAIC cannot accept complaints about the actions of individuals. This is because the Privacy Act does not cover the actions of individuals acting in a personal capacity. If your personal information is being handled by a person that is doing so for their own purposes, and not in the course of their employment duties, then this matter would not be regulated by the Privacy Act and the OAIC would be unable to assist you in this instance.

Information about [what happens to your privacy complaint](#) is available on our website.

FOI Complaints & Reviews

If you wish to apply for access to documents held by an Australian government agency, then you need to make a request in writing, under the FOI Act, directly to the agency that holds the records. Further information about [making an FOI application](#), including details of what needs to be included, is available on our [website](#).

If you have made such an application to an Australian government agency and you are unhappy with the outcome, we have also

agency and you are unhappy with the outcome, we have also published guidance on applicants' [review rights](#) and [making a complaint](#) about how an agency has handled your FOI application.

Enquiries

The OAIC can also provide general advice on how the Privacy Act or FOI Act may apply in a specific instance.

If you are looking for information on how the Act might apply in your circumstances then you would need to provide a description of the situation. This description would need to include the specific business practices about which you would like advice.

What we cannot do

We cannot deal with matters about State, Territory or local government bodies. This is because neither the Privacy Act or the FOI Act covers State and Territory government bodies, including local government, public hospitals/schools/universities, state and local police. If your enquiry relates to a State or Territory government body, you will need to contact the relevant privacy or FOI regulator in your state.

The OAIC has no powers to change the law, we only regulate the Act. If you feel that the Privacy Act or FOI Act is in any way insufficient, you may wish to contact your local federal representative to express your concerns.

The OAIC has no jurisdiction over criminal activity or ability to ensure the physical safety of individuals. If you feel endangered, or would like to report a crime, please contact your local police.

About us

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For further information please visit our [website](#).

I hope this information has been useful.

Yours sincerely

Enquiries Team
Office of the Australian Information Commissioner

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